

DRAFT ORDER (v2) *(proposed by the Appellant)*

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION — *Workers' Compensation and Rehabilitation Act 2003 (Qld)* — Matter No: WC/2024/227

BETWEEN: CORY LEA SHEPHERD (Appellant) **and** WORKERS' COMPENSATION REGULATOR (Respondent)

NON-PARTY: METRO SOUTH HOSPITAL AND HEALTH SERVICE ("MSH")

Member: Commissioner Dwyer **Date of order:**

Application: Application in Existing Proceedings (Form 4) under r 64G, filed 18 June 2026

UPON the application of the Appellant under r 64G of the *Industrial Relations (Tribunals) Rules 2011* for the Commission to decide the objection of MSH to the Notice of Non-Party Disclosure (Form 29) sealed by the Industrial Registry on 22 April 2026 ("the Notice");

AND UPON reading the Affidavit of Cory Lea Shepherd affirmed 18 June 2026 and the exhibits CS-1 to CS-4, MSH's letter of 5 June 2026 (ref K-LM26/729), and the Respondent's disclosure of 11 June 2026;

THE COMMISSION ORDERS THAT:

1. Pursuant to r 64G(2), the Notice is upheld as varied in the terms of Schedule A to the application — the pressed Items being 1, 2, 3(a), 3(b), 9, 10 and 19 (Item 10 confined to (a) an aggregate metadata-only count and (b)–(e) the phrase-family and bounded-correspondence exports) — the objection of MSH being otherwise overruled.
2. MSH produce the documents within that varied scope by native electronic export of the messages and records returned by the server-side filters described in the Notice (identified custodians, date-ranges and phrase-families), no inbox review, reading or relevance-assessment of any email being required, by 4:00 pm on (and in any event within 14 days of this order).
3. MSH, by its Chief Executive or a delegated Director, file and serve within seven (7) business days of this order a verification affidavit complying with the Schedule to this order, in respect of each pressed Item, the AVAC payroll export sought at Item 16, and each Item on which MSH asserts non-existence, destruction or irrelevance (Items 3(c), 4, 5, 7, 18 and 20).
4. The time for production at order 2 is fixed and is not contingent upon the supply of any pleading to MSH.
5. If any question of privacy or confidentiality is raised in respect of the production, the documents be

produced to the Commission for its inspection in the first instance, with access to the parties as the Commission directs, and subject to any order under s 580 of the *Industrial Relations Act 2016*.

6. Pursuant to s 580 of the *Industrial Relations Act 2016*: (a) there be no publication of any information identifying the fact or content of the Public Interest Disclosure (reference PID 24-ESU-1130) or the Ethical Standards Unit determination, giving effect to s 65 of the *Public Interest Disclosure Act 2010* (Qld); and (b) the witness-conferencing material before the Commission is received subject to its existing confidentiality and is not to be published.

7. Costs reserved.

8. There be liberty to apply, and such further or other orders as the Commission considers appropriate.

SCHEDULE — REQUIRED CONTENTS OF THE VERIFICATION AFFIDAVIT (order 3)

The verification affidavit is directed only to verifying, after a defined search, what exists and what is to be produced; it is not directed to any wider inquiry into MSH's conduct. So that a statement of non-existence is verified rather than asserted in the abstract, the affidavit must address the following.

Part 1 — For every Item for which production is sought, or non-existence, destruction or irrelevance is asserted, the affidavit must depose:

(1) that a search was in fact undertaken (a bare assertion of non-existence, unsupported by a deposed search, being insufficient); the name and position of the person who conducted the search, and whether that person had access to the systems searched; the systems, mailboxes, repositories and custodians searched; the search terms, filters and date-range applied; and the date on which the search was undertaken;

(2) whether the record exists as at the date of the affidavit; if it does not, whether it ever existed; and, if it once existed, when and by what means it ceased to exist (deletion, system migration, archiving, disposal or destruction), on whose authority or instruction, and under what retention policy or schedule;

(3) whether any copy, backup, archive, export, migrated instance, or version held on any superseding system exists, and if so its production;

(4) where any document already before the Commission, or disclosed in this proceeding, appears to fall within the Item, identification of that document and either its production or the precise basis on which it is said to fall outside the Item; and

(5) the name and position of any officer on whose knowledge the deponent relies for the above, that officer's account being exhibited or separately sworn.

Part 2 — Item-specific matters, in addition to Part 1:

- **Items 1–2 (SPOK emergency-code / paging records):** the date and nature of the SPOK "upgrade"; whether the pre-upgrade records were migrated to, retained in, or are retrievable from the upgraded

system or any successor or backup, with the production of any that are retrievable and, for any that are not, the reason they are said to be irretrievable and the date and authority on which they ceased to be retained. As to the "spreadsheet of recorded MET calls" for 17–18 March 2024 — its identity, author, custodian and source system, and whether it is (a) an export from the SPOK system itself, (b) an MSH-maintained administrative record, or (c) the Appellant's own monthly call-statistics sheet (volume only) — together with its production. If it is (c), the affidavit must confirm that the SPOK system-level records (which clinician was paged, whether each page was received or acknowledged, whether any page was misdirected, and the associated timestamps) have been separately searched.

- **Item 3(c) (consequential changes):** each change to Switchboard operating procedures, reporting lines or systems over the noticed period, with its date — addressing in terms the SPOK upgrade, the Switchboard reporting-line reorganisation, the issue of a Queensland Health device to the Line Manager, and the introduction of a separate Switchboard Telecommunications Coordinator role together with any restriction of contact-number and directory-database updates to that role — or, if there was no such change, a statement to that effect on oath; and in either case the reconciliation of the answer with the statement that there were "no consequential changes".
- **Items 4 and 7 (fatigue risk-assessment / register):** whether any fatigue risk-assessment or register record referable to the Switchboard work area existed as at 17–18 March 2024 (as distinct from training records); if so, its production; if not, a statement on oath that none existed.
- **Item 5 (fatigue framework):** each fatigue-risk-management policy, directive, guideline or framework (including any under the Queensland Health Fatigue Risk Management System) that applied to the Switchboard work area, or to its non-clinical administrative staff, as at 17–18 March 2024 — identified by name and number — or, if none applied, a statement on oath to that effect; and in either case the date on which fatigue risk management was implemented at the Switchboard.
- **Item 18 (communication book; 15 November 2023 business-case minutes):** whether each record exists; and if either was destroyed, when, by whom, and under what authority.
- **Item 20 (operational / HR response, 13–31 May 2024):** whether records of the operational and human-resources response to the matters raised in that window exist, addressing in terms the correspondence of 15–16 May 2024 disclosed by the Respondent on 11 June 2026, independently of when the reference "PID24-ESU-1130" was assigned.

Commissioner Dwyer

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